

DISCOVER BANK v WEBER

23CF14324

PLAINTIFF'S MOTION FOR JUDGMENT

This matter involves nonpayment of a credit card debt brought by Discover Bank ("Plaintiff") against Tiffany Weber ("Defendant.")

Now before the Court is Plaintiffs' motion to enter judgment pursuant to Code Civil Procedure section 664.6. The motion is not opposed.

I. Background

On May 1, 2025, the parties filed a stipulation of settlement. Pursuant to that settlement, Defendant agreed she owed \$2,214.87 on a credit card account. (Declaration of Zhen Ren ("Ren Decl.") ¶5, Ex. A)("Agreement.") However, Plaintiff and Defendant agreed that Plaintiff would pay \$1,622.07 to resolve the matter. (*Id.* ¶ 4.) The Agreement called for Defendant to make monthly payments of \$67.60 starting on November 28, 2024, and continuing monthly, with final payment to be on October 28, 2026. (*Id.* ¶ 6.) However, Defendant did not pay according to the terms of the Agreement, instead making a first payment on December 3, 2024, in the amount of \$125.00. (*Id.* ¶ 7) and a last payment on December 2, 2025. (*Ibid.*)

The Agreement contained the following language:

Pursuant to Code of Civil Procedure 664.6, and should Defendant(s) fail to make any payment on or before the stated due date, the Plaintiff shall immediately be free to pursue all available penalty remedies including by not limited to Code of Civil Procedure section 664.6 and to file a Motion, ExParte Application, Declaration and Order and/or a new lawsuit to vacate any dismissal and to have judgment entered against Defendant for \$2,214.87 plus Court costs, less any amounts received by Plaintiff from Defendant. (Agreement ¶ 6.)

II. Legal Standard and Analysis

Cal. Civ. Proc. Code § 664.6(a) provides that:

If parties to pending litigation stipulate, . . . orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the

parties to enforce the settlement until performance in full of the terms of the settlement.

“On a motion to enforce, the court must determine whether the settlement agreement is valid and binding. The court assesses whether the material terms of the settlement were reasonably well defined and certain, and whether the parties expressly acknowledged that they understood and agreed to be bound by those terms.” (Estate of Jones (2022) 82 Cal.App.5th 948, 952.) A section 664.6 motion may be used “even when issues relating to the binding nature or terms of the settlement are in dispute, because, in ruling upon the motion, the trial court is empowered to resolve these disputed issues and ultimately determine whether the parties reached a binding mutual accord as to the material terms.” (*In re Marriage of Assemi* (1994) 7 Cal.4th 896, 905.)

The Agreement required Defendant to make monthly payments of \$67.06 until October 28, 2026. Defendant stopped making payments in December of 2025. Plaintiff’s counsel avers that at the time Plaintiff stopped making her payments she had paid \$1,529.00 of the \$1,622.07 owed. Meaning, at the time she stopped making payments, she owed a remaining \$93.07.

Plaintiff now seeks \$685.87 which reflects the amount requested in the Complaint (\$2214.87) minus the credit of \$1,529.00, and costs in the amount of \$293.50, for a total judgment of \$979.37.

Pursuant to the terms of the Agreement which Plaintiff signed, in the event that she failed to make payment by the due date, then Defendant could seek judgment in the amount of \$2214.87 plus costs, minus any credit for payment made. Accordingly, the motion is **GRANTED**, and Judgment is entered requiring Plaintiff to pay \$979.37 to Defendant.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted proposed Order.

FOOTE, et al v GOTTA LUV PIZZA, et al

24CV47525

PLAINTIFFS' MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

This matter involves a class action for wage and hour violations. Alison Foote, Jason Ross and Courtney Jones ("Plaintiffs") filed this class action lawsuit against Gotta Luv Pizza, Inc. dba Round Table Pizza #05 ("Defendants.") Plaintiffs bring causes of action for wage and hour violations, including failure to pay overtime wages, wage statement violations, waiting time penalties and unfair competition. Plaintiffs seek penalties and damages under the Labor Code, Business and Professional Code, and the Private Attorney General Act ("PAGA").

Plaintiffs report the matter has settled and move for preliminary approval of the settlement agreement ("Agreement"). (Code Civ. Proc., § 382, Cal. Rules of Court, rule 3.769.)

I. Settlement Approval Process

There are three stages to the Court's settlement approval process: (1) preliminary approval of the proposed settlement at an informal hearing; (2) notice of the settlement to all affected class members; and (3) final approval after a formal hearing. The current motion is the first stage of the process. The Court may approve settlements reached before or after certification of the class. (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 240, disapproved on another ground in *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260, 269.) Here, the class was not certified prior to the settlement, and Plaintiffs seek class certification at this time. The certification issue is addressed below.

When an action includes PAGA claims, the Court must review and approve the settlement and the proposed settlement shall be submitted to the Labor and Workforce Development Agency (LWDA) at the same time that it is submitted to the Court. (Lab. Code, § 2699, subd. (l)(2).) Plaintiffs has provided notice to the LWDA. (Declaration of Tyler J. Woods ("Woods Decl." ¶ 4.)